

Case :- WRIT - C No. - 8073 of 2021

Petitioner :- Kamlesh Chandra Tiwari

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Chandresh Kumar Chaurasiya, Pradeep Kumar

Counsel for Respondent :- C.S.C., Narendra Kumar Tiwari

Hon'ble Manoj Misra, J.

Hon'ble Jayant Banerji, J.

Heard learned counsel for the petitioner; learned Standing Counsel for the respondent no.1; and Sri Narendra Kumar Tiwari for the respondents 2 to 4.

The petitioner has an electricity connection to run a poultry farm. The case of the petitioner is that the rate of charge for supply of electricity to poultry farm ought to be at par with that of supply of electricity for the purposes of agriculture as, under the provisions of U.P. Revenue Code, 2006, 'agriculture' includes poultry farming.

The prayer therefore is to command the respondents to correct the electricity bill of the petitioner and to charge for the supply of electricity by treating it as a supply for non commercial electricity connection.

Sri Narendra Kumar Tiwari, who appears for the respondents 2 to 4, has submitted that under the provisions of U.P. Electricity Supply Code, 2005 electricity consumers have been categorized into a number of categories. In those specified categories there is no separate category for agriculture though, LMV-5 category is with respect to supply of power to a private tube well/pumping set for irrigation purposes and HV-4 category is for supply of electricity for lift irrigation works. It is submitted that since running a poultry farm is a commercial activity, the petitioner is being billed in LMV-2 category i.e. non domestic light, fan and power.

The learned counsel for the petitioner could not demonstrate that under the U.P. Electricity Supply Code, 2005 or under any Government Order or policy there is a specific category in respect of supply of electricity for agriculture in general other than those specified in LMV-5 and HV-4 categories noticed above. There is also no Government Order or policy cited to treat poultry farming as agriculture for the purposes of determining the rate at which the electricity is supplied.

In view of the above, since the U.P. Electricity Supply Code,

2005 has specifically classified various categories of consumers and there is no category specified in respect of electricity supply for agriculture in general other than those specified as LMV-5 and HV-4 categories noticed above, the benefit of the definition of 'agriculture' as obtaining in the provisions of U.P. Revenue Code, 2006, in our view, would not enure to the benefit of the petitioner to seek a rebate on the rate at which the electricity is supplied to his poultry farm which is LMV-2 i.e. non-domestic usage. More so, when, otherwise, running a poultry farm is considered a commercial activity.

The petition is, accordingly, **dismissed**.

Order Date :- 13.9.2021

AKShukla/-